

were due to minor, clerical errors. What's more, Defendant had already included a proposed answer with their earlier motion to set aside the default judgment, so this is not a case where Plaintiff is caught by surprise.

The furtherance of justice compels this court to allow the filing of the late Answer in this matter.

Disposition

Plaintiff's Motion is Denied.

Defendant to file Order.

**6. 9:00 AM CASE NUMBER: L25-03749
CASE NAME: BRIAN BURNETT VS. KILLARNEY PROPERTIES
FOR ORDER TO SHOW CAUSE AND SANCTIONS FOR VIOLATION OF COURT ORDER
FILED BY: BURNETT, BRIAN
*TENTATIVE RULING:***

Plaintiff has a filed a motion requesting this court to issue an order show cause for Plaintiff's apparent violation of a 4/14/26 Order in which this court directed Defendant to file their Answer within 10 days.

The Plaintiff requests sanctions under various statutes, such as: CCP 128 (Contempt); CCP 177.5 (Court's general power to issue sanctions for order violations); CCp 575.2 (Sanctions for violations of local rules); and, CRC 2.30 (general sanctions authority for rule violations).

Background and Analysis

The court, in its analysis on Plaintiff's separate motion in this matter stemming from the same issue, found that though Defendant may have filed their Answer nearly 2 weeks late, Defendant made a good faith effort to comply with the court's order and, had it not been for 2 minor clerical errors, would have successfully filed their Answer before the proper deadline.

This court does not find that Defendant engaged in any conduct that would warrant sanctions.

Disposition

Plaintiff's Motion is denied.

Defendant to file Order.

7. 9:00 AM CASE NUMBER: L25-05850

CASE NAME: JPMORGAN CHASE BANK N.A. VS. ELIZABETH FIELD

VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF STIPULATED SETTLEMENT

FILED BY: JPMORGAN CHASE BANK N.A.

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant where she was personally served with notice of the Summons and Complaint.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$6,495.61, plus costs, and less any credits for payments received.

The agreement was filed with the court.

The case was then dismissed.

The Defendant made payments of \$1,895.61.

Costs are \$0.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$4,600.

Plaintiff to file order on Motion, as well as submit Judgment.

8. 9:00 AM CASE NUMBER: L25-06238

CASE NAME: BANK OF AMERICA N.A. VS. KARLA INTERIANO

FOR JUDGMENT ON THE PLEADINGS

FILED BY: BANK OF AMERICA N.A.

TENTATIVE RULING:

Plaintiff filed a Motion for Judgment on the Pleadings, as well as an accompanying Memo of Points and Authorities, and one of costs. The Motion and Memos were timely served by mail on the address for Defendant provided in the Answer.